TN GOLD ARCTURUS MINE (PRIVATE) LIMITED
versus
CROMLET LANDOWNERS' ASSOCIATION
and
MINISTER OF MINES AND MINING DEVELOPMENT N.O

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 1 & 5 June 2026

Urgent Court Application

F Mahere, for the applicant
T R Mugabe, for the first respondent
T J Gundumura, for the second respondent

DEMBURE J:

INTRODUCTION

This is an urgent court application for a declaratory order and consequential relief. The applicant seeks relief in terms of s14 of the High Court [*Chapter 7:06*] as follows:

> "1. It is hereby declared that the court order granted in HCH 1272/26 on 6 May 2026 does not affect the Applicant's mining rights in terms of Mining Lease Title Registered Number 33 issued on 13 August 2015 and published under General Notice 473 of 2014.
> 2. It is hereby ordered and declared that the Applicant has a right to conduct all mining activities deriving from Mining Lease Title Registered Number 33 issued on 13 August 2015 and published under General Notice 473 of 2014.
> 3. It is hereby ordered and declared that the Applicant has a right to create a buffer zone measuring a radius of 450 metres from Lots 61, 62, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 78 and 70 and conduct its mining activities outside the buffer zone created and within the parameters of Mining Lease Title Registered Number 33 issued on 13 August 2015 and published under General Notice 473 of 2014.
> 4. The first Respondent shall bear the costs of suit on a legal practitioner-client scale."

The application is opposed by the first respondent. Mr *Gundumura*, counsel for the second respondent, informed the court during the case management meeting on 21 May 2026 that the second respondent was not opposed to the relief sought by the applicant. Ms *Mahere*,

counsel for the applicant, raised three preliminary points. The court heard the submissions on the points *in limine on* 1 June 2026 and reserved judgment *sine die*. It was also submitted that, should the court uphold the preliminary points, the applicant prays for an order in terms of the draft relief stated above.

THE PARTIES

The applicant is TN Gold Arcturus Mine (Private) Limited, a company duly registered in terms of the laws of Zimbabwe. The first respondent is Cromlet Landowners' Association, a common law *universitas* and the plaintiff in a matter registered under Case No. HCH 1272/26, wherein it obtained a default judgment against the second respondent. The second respondent is the Minister of Mines and Mining Development, cited in his official capacity as the authority who is assigned the administration of the Mines and Minerals Act [*Chapter 21:05*]. The Minister was also cited as the sole defendant in the claim filed by the first respondent in Case No. HCH 1272/26.

THE BACKGROUND

The applicant is a holder of mining title for a mining location at Arcturus Mine situate in Goromonzi District, being the Mining Lease Title Registered Number 33 (*"Mining Lease 33"*) issued on 13 August 2015. The first respondent disputed the validity of the title in question. The mining area where the applicant conducts its operations includes what is now known as Cromlet Township. It was pleaded by the applicant that the township was developed in stages from 1958, starting with Lots 1-14, which were surveyed in 1958, but the residential stands are situated outside the mining lease area. It further alleged that the second stage occurred between 1994 and 1995 and involved the establishment of Lots 14-47. These were surveyed in 1994 and are located within the applicant's mining claims.

It also stated that the third stage occurred between 2019 and 2021 and involved the establishment of Lots 56-92. The applicant alleged that these were surveyed in 2019 and approved in 2021. It was further alleged that of these, Lots 61, 62, 63, 64, 65, 66, 66, 67, 68, 69, 70, 71, 72, 73, 74, 78 and 79 encroach on the applicant's Mining Lease 33. It was further stated that the applicant was issued with an Environmental Impact Assessment Certificate (*"EIA"*) by

the regulator, the Environmental Management Agency (*"EMA"*), on 26 July 2024, authorising it to conduct mining activities at its claims. It also submitted an addendum document to its current AIA licence to EMA for amendment of its notice, which contained the buffer zones the applicant intended to create between its mining activities and the lots encroaching on its mining title.

It is common cause that the first respondent instituted legal proceedings in Case No. HCH 1272/26 against the second defendant. In that suit, the applicant and EMA were not cited as parties thereof, despite the fact that the parties having interacted before during consultations involving the regulator, EMA. On 6 May 2026, the court, *per* MAXWELL J, granted a default judgment in favour of the first respondent against the Minister of Mines and Mining Development, the sole defendant. The order reads:

> "IT IS ORDERED THAT
> 1. The issuance of permits and mining licences by the Defendant to Operators to mine within the boundaries of a gazetted residential township are wrongful and illegal.
> 2. The Defendant is not to issue any further mining permits and licences for activities within the boundaries of Cromlet township.
> 3. The Defendant together with the licence and permit holders are to attend to the environmental rehabilitation of the damaged environment within Cromlet township.
> 4. 4. The Defendant is to furnish the Plaintiff within 30 days of the granting of this order, a full register of all permits and mining licences issued in respect of land within or adjacent to Cromlet Township since 1 January 2010.
> 5. There is no order as to costs."

It was pleaded that the court order cannot be interpreted to apply against the applicant, a non-party. The contention was further that the first respondent has already misrepresented to EMA that the default judgment is binding on the applicant, and that if such misrepresentation goes unarrested, it may be carried into execution, resulting in the applicant being prevented from operating despite the fact that it has an extant Mining Lease 33. The letter from the first respondent advising EMA of the default judgment, in which it interpreted the judgment as applicable to the applicant, was copied to it on 8 May 2026. The applicant averred that the court must declare the existence of each party's rights so as to avoid the confusion caused by the first respondent. It was further contended that the matter cannot wait and that the court must intervene urgently.

On 21 May 2026, I issued a case management order setting out the timelines for filing their pleadings and heads of argument with the consent of the parties. Mr *Mugabe* advised that

he also intended to file a counter-application against the applicant. I accordingly directed, *inter alia*, that the first respondent file its notice of opposition together with any counter-application before close of business on Friday, 22 May 2026. The case management order reads:

> "1. The first respondent shall file its notice of opposition together with any counter application before close of business on Friday, 22 May 2026.
> 2. The applicant shall file its answering affidavit, if necessary and a notice of opposition to the counter application, if any, as well as heads of argument before close of business on Tuesday, 26 May 2026.
> 3. The first respondent shall file its answering affidavit, if necessary, to the notice of opposition in respect of the counter application, if any, and heads of argument before close of business on Thursday, 28 May 2026.
> 4. The applicant is granted leave to file supplementary heads of argument, if necessary, by close of business on Friday, 29 May 2026.
> 5. The matter shall be heard and determined physically on Monday, 1 June 2026 at 2:30 pm."

The first respondent filed its notice of opposition on 22 May 2026, but it did not file the counter-application until 26 May 2026. It further filed what was called a Notice of Filing to which several evidential documents were annexed on 27 May 2026. The parties also filed their respective heads of argument as directed by the court.

In its opposition, the first respondent raised several points *in limine,* namely that the application is procedurally defective; that the certificate of urgency is fatally defective and that the urgency was self-created; that Mining Lease 33 is a nullity; and that the application was a disguised appeal. On the merits, it was contended that the community came first and that the applicant's mining activities violated the law. It was contended that the applicant fails to meet the requirements for a *declaratur* in that its interest is founded on a void instrument, the Mining Lease 33 is a nullity; that there is no existing right to protect from a nullity and that the court should not exercise its discretion in favour of an applicant who comes with dirty hands having pegged the claims without an EIA certificate and seeks to circumvent a court order. The characterisation that 16 lots encroach on the Mining Lease 33 was disputed. It was stated that Mining Lease 33 encroached on a statutory township. They insisted that the first respondent brought a straightforward and legally sound claim, which was duly granted. The prayer was for the dismissal of the application with costs, as the respondent averred that it was ill-conceived and inappropriate.

In the answering affidavit, the applicant challenged the authority of the deponent for the opposing affidavit. It was contended that the first respondent was not properly before the court because the purported resolution was invalid as it was undated and had been certified by the deponent herself. The applicant argued that the matter ought to be treated as unopposed. The applicant also related to the preliminary points raised by the first respondent and the averments made on the merits.

At the hearing, Ms *Mahere* made the point in limine that the notice of opposition and opposing affidavit were incompetent or invalid as the deponent was not validly authorised to depose to the opposing affidavit. Further, two points were raised: that there was no counter-application before the court for non-compliance with the court order issued on 21 May 2026, and that the purported notice of filing filed on 27 May 2026 was incompetent and ought to be struck out. The court has to deal with the preliminary points raised by the applicant, as if upheld, have the effect of non-suiting the respondent. It must, therefore, be established if the first respondent is properly before the court and, accordingly, can be properly heard.

I will now turn to the submissions made in respect of the three points *in limine*. I will not deal with the points in the manner they were argued, as in my view, the first point to be considered is the one which deals with the validity of the first respondent's opposing papers, namely that the opposition was not authorised by a valid resolution of the first respondent and, therefore, a nullity.

THE POINT *IN LIMINE* RELATING TO THE LACK OF AUTHORITY OF THE DEPONENT TO THE OPPOSING AFFIDAVIT

SUBMISSIONS ON BEHALF OF THE APPLICANT

Ms *Mahere* submitted that the notice of opposition and opposing affidavit are incompetent because the deponent has not been validly authorised to depose to the affidavit. Counsel further argued as follows. At p. 83 of the record is a document that calls itself a resolution but is invalid. The omission of the date of when it was passed is significant. This is proof that no meeting was held. If a meeting was held, say on the 10th, it would have been stated. If no meeting was held, then no resolution was passed. This is not a typographical error. At p 84

is a document that purports to certify the authenticity of the meeting, but we are not told the date of the meeting. Again, no date is stated or inserted. The purported resolution authorised Catherine Hove, who is the same person at p 84, to certify that the document is authentic. It is the deponent who authorises herself. There is no meeting of the Association. There is no valid resolution authorising the notice of opposition. There is no notice of opposition, and the purported opposing papers ought to be struck out for want of proper authorisation. She moved that the matter be dealt with as unopposed and would pray for the order to be granted.

SUBMISSIONS ON BEHALF OF THE FIRST RESPONDENT

Mr *Mugabe*, on the other hand, argued that the resolution is valid and granted authority to the deponent to depose to the opposing affidavit. He went to submit as follows. The omission of the date is regrettable, but it does not take away what the common law *universitas*'s objectives are. The members of the first respondent, confronted with an application, came together and authorised Catherine Hove. What is critical is that the opposing affidavit is dated and speaks to the proceedings. Counsel referred me to the case of *Zimnat Insurance Co Ltd* v *Chawanda* 1990 (2) ZLR 143 (S). He argued that the reason for the existence of rules is not to non-suit the litigant, especially where there is no prejudice. There has been no averment as to the prejudice suffered by the applicant.

I was referred to the cases cited in the heads of argument. Counsel further submitted that in *African Banking Corporation of Zimbabwe Ltd t/a Banc ABC* v *PWC Motors (Pvt) Ltd & Ors* HH 121/18, it was held that a resolution is not required in all cases and in the absence of evidence to the contrary, the omission of a resolution is not fatal. The opposing affidavit remains regular even if the resolution is struck out. There is no evidence that the deponent was not authorised. No one was called to testify that they did not meet. It was also argued that in *Kettex Holdings (Pvt) Ltd* v *Kencor Management Services (Pvt) Ltd*, HH 236/15, it was held that the challenger must point to tangible evidence of a lack of authority. While the resolution may be insufficient, the averments of the deponent remain valid in the absence of evidence. He who alleges must prove. Evidence of lack of authority is required. Mr *Mugabe* finally urged the court to uphold the resolution and, if not, to uphold the opposing affidavit, as the deponent has averred authority, and there is no evidence to the contrary that she lacks authority.

SUBMISSIONS IN REPLY FOR THE APPLICANT

Ms *Mahere* submitted that it is now trite that a person representing a legal entity, when challenged, must show that he is duly authorised to represent the entity. Counsel made reference to the case of *Dube* v *Premier Service Medical Aid & Anor* SC 73/19 para 38. It was further contended that a challenge has been raised. The applicant raised a dispute as to when a meeting was held. The point was raised in the answering affidavit in para 3. They had ample opportunity to place a valid resolution. They just ignored the point. Once a challenge is raised, you must show proof. This is not cured by what the *African Banking Corporation of Zimbabwe* case (*supra*) says. This goes to the root of the case before the court. It was also argued that counsel for the first respondent conceded that the defect exists on the date. The deponent is the same person certifying that there was a meeting on a phantom date. There is no proper opposition, and it must be struck out.

WHETHER OR NOT THE PURPORTED RESOLUTION IS VALID AND CONSEQUENTLY WHETHER THE OPPOSITION IS VALID

THE LEGAL PRINCIPLES AND THEIR APPLICATION TO THE FACTS

It is well-established that a legal entity cannot be represented in legal proceedings by a person who has not been duly authorised to do so. This is a fundamental principle of corporate and procedural law, not a technicality. It is trite that a person representing a legal entity in a suit, when challenged, must show that he or she is duly authorised by the entity to represent it. Once his or her authority is put in issue or challenged, then he must produce a valid resolution showing that he is duly authorised to act. The position of the law has long been resolved in *Dube v Premier Services Medical Aid Society & Anor* (*supra*). In that case, the Supreme Court considered the conflicting judgments of the High Court in interpreting the decision in *Madzivire & Ors* v *Zvarivadza & Ors* 2006 (1) ZLR 514 (S). Interestingly, Ms *Mahere*, in that case, was of the view that a resolution is not necessary in every case and had argued that the failure to state in the founding affidavit that the deponent was authorised was not fatal. GARWE JA (as he then was), after relating to the conflicting judgments of the High Court, including the *African Banking*

Corporation of Zimbabwe case (*supra*) cited by Mr *Mugabe*, regarded the conflict as being unnecessary.

In para(s) 37-38, he went on to state as follows:

> "…In a decision reported as *Madzivire & Ors* v *Zvarivadza & Ors* (*supra*), at 515, this Court (*per* CHEDA JA) remarked as follows:-
>
> > "A company, being a separate legal person from its directors, cannot be represented in a legal suit by a person who has not been authorised to do so. **This is a well-established legal principle, which the courts cannot ignore**. **It does not depend on the pleadings by either party**. The fact that the person is the managing director of the company does not clothe him with the authority to sue on behalf of the company in the absence of any resolution authorising him to do so. The general rule is that directors of a company can only act validly when assembled at a board meeting. As exception to this rule is where a company has only one director who can perform all judicial acts without holding a full meeting."
>
> [38] The above remarks are clear and unequivocal. **A person who represents a legal entity, when challenged, must show that he is duly authorised to represent the entity. His mere claim that by virtue of the position he holds in such an entity he is duly authorised to represent the entity is not sufficient. He must produce a resolution** of the board of that entity which confirms that the board is indeed aware of the proceedings and that it has given such a person the authority to act in the stead of the entity. I stress that **the need to produce such proof is necessary only in those cases where the authority of the deponent is put in issue**. This represents the current state of the law in this country." (*my emphasis*)

Given the above settled legal position, Mr *Mugabe*'s attempts to reset the law by referring to the previous decisions of the court in *Kettex Holdings* and *African Banking Corporation Zimbabwe* (*supra*), whose principles were overruled by the Supreme Court, are utterly untenable. It is trite that once the Supreme Court has spoken, its opinion or decision is final, except in constitutional matters. Its decisions are binding on all courts except the Supreme Court itself, and its decisions on non-constitutional matters cannot be altered by any court. See *Lytton Investments (Pvt) Ltd* v *Standard Chartered Bank Zimbabwe Ltd & Anor* CCZ 11/18. Accordingly, the law is that, once his or her authority is challenged, it is the deponent who must show that he or she has the authority to act for the legal entity by producing a valid resolution of the relevant legal entity. There is no *onus* at all on the other party to show otherwise.

In the absence of such authority in the form of a resolution of the legal entity, any purported affidavit and the proceedings thereof are irregular or fatally defective. Thus, the

Supreme Court (*per* GARWE JA, as he then was) in *Dube* (*supra*) in para 41 concluded as follows:

> "[41] Further it is clear that it is the law in this country that, when challenged, a person who purports to represent a legal entity must produce proof of his authority to represent such entity. **In the absence of proof of such authority, the affidavit deposed to on behalf of the entity is irregular and must be ignored**." (*my emphasis*)

There is no longer any debate in our law on the position that the absence of valid authority to represent the legal entity renders the proceedings, any legal suit, or any papers purported to have been filed on behalf of the legal entity legal nullities. They lack legal existence. This was recently affirmed in *The Trustees for the Time Being of Oliver Mandishona Chidawu Trust* v *Broadway Investments (Pvt) Ltd* SC 09/26, where MUSAKWA JA, writing the unanimous decision of the Supreme Court, said:

> "9. The law is clear and uncompromising that **acts done without lawful authority are void *ab initio* and are, in law, nullities**.
>
> ….
>
> 13. The consequences of that foundational defect are immediate and categorical. **Once it is shown that the application was instituted without lawful authority, the entire proceedings collapse**. The rule that "you cannot put something on nothing and expect it to stay there" is particularly apposite, **every step taken in reliance on the invalid resolution is itself tainted and incapable of producing valid judicial outcomes**. The court *a quo*'s failure to decline jurisdiction or to strike the matter off the roll upon the clear challenge to authority therefore constituted a misdirection of law. By entertaining and adjudicating the application, the court *a quo* effectively permitted the fruits of an unlawful act to be litigated, an approach the law does not allow." (*my emphasis*)

Given the above settled law, Mr *Mugabe*'s argument that, even if the resolution is defective, the opposing affidavit retains its validity is clearly misplaced. Once the purported resolution is found to be invalid, nothing valid can arise. The opposition would automatically collapse. The unauthorised acts of the deponent would, therefore, not be taken as the valid acts of the legal entity capable of producing any valid outcomes. In other words, the opposition cannot survive but collapses entirely, making the legal entity not properly before the court.

In this case, there is no dispute that the first respondent is a legal entity. It is a common law *universitas* and accordingly a separate *persona* from its officers or members. It can only be represented by persons duly authorised by the entity to act on its behalf. At pp 83 to 84 of the record is the purported resolution alleged by the deponent in the opposing affidavit, one

Catherine Hove, to be authorising her to litigate on behalf of the first respondent, the Association. That from the alleged resolution, there is no date of the alleged meeting or of when the resolution was passed, is undisputed. It purported to state as follows:

> "RESOLUTION OF THE CROMLET LANDOWNERS' ASSOCIATION
>
> Passed at a duly convened meeting of the Cromlet Landowners' Association held on_____ May 2026 at Cromlet Township, Ward 15, Goromonzi District
>
> A quorum of members was present."

Mr *Mugabe* conceded that the omission of the date on which the resolution was passed was a defect, but he believed it was not fatal. I do not agree. The validity of a resolution purported to have been passed at a certain meeting of members is closely tied to when it was passed. It cannot purport to be a resolution passed on a phantom date. The existence of the date goes to the root of such authority that it was validly passed on a particular date or that the Association was at the time aware of the proceedings before the court and that it indeed authorised them or anyone purporting to act for it to so act on its behalf. This is also why a blanket resolution cannot be valid. It must be clear that the legal entity was made aware of the proceedings on a particular date and that it made such a resolution. The date thereof confirms that it was indeed a decision of the entity taken at a meeting held on that date.

The existence of a date shows that the legal entity is indeed aware of the proceedings before the court and that it has authorised the deponent to act on its behalf. In *Valentine & Anor* v *Blooming Lily Investments (Pvt) Ltd & Ors* SC 42/23 at p 11, para(s) 30-31, the reasons for the requirement of producing a resolution were stated as follows:

> "30. Therefore, a company resolution is required for two reasons, **first**, **to prove that the entity is aware of the legal proceedings and has authorised them** and, **secondly, that the person representing it has been clothed with the requisite authority to represent it in the proceedings**." (*my emphasis*)

In my view, an undated resolution cannot satisfy the requirement or prove that indeed the legal entity is aware of the proceedings and that the deponent is so authorised. Even at p 84, the purported certification that the document is a resolution of the Association is again undated. This is not a typographical error. It can only point reasonably to one thing, as argued by Ms *Mahere*, that there was never any meeting of the Association or that the Association is not aware of these proceedings, nor has the deponent been authorised to litigate on its behalf. The requirement of

authority is not a technicality but a fundamental principle of corporate and procedural law that protects the integrity not only of corporate decision-making but also of the courts themselves: *per* MUSAKWA JA in *The Trustees for the Time Being of Oliver Mandishona Chidawu Trust* case (*supra*), at p 7, para 11.

The court cannot, therefore, be invited to speculate as to the presence of a legal entity before it. It must be shown from the resolution produced that the litigation is duly authorised. The first respondent's case is further compounded by the fact that the deponent herself purported to sign it at p 84. The deponent purported to have authorised herself to act for the entity. No date of the meeting when the resolution could have been passed is stated or inserted. Surely in these circumstances, it cannot seriously be argued that the purported resolution is a valid authority from the Association. There is no valid resolution that purports to authorise the deponent to act on behalf of the first respondent. The defect is fatal, and the purported document is, therefore, fatally defective or a nullity.

The applicant challenged the deponent's authority in the answering affidavit. It was disputed that any meeting took place, as no date was stated. There was a dispute, and as *per* the authority of the *Dube* case (*supra*), when challenged, the deponent ought to have produced a valid resolution to show that she was duly authorised to represent the first respondent. She did not. Mr *Mugabe* simply ignored this fundamental point and brushed it aside. According to him, it was unnecessary, and it was the applicant who had to show that she lacked authority. He was clearly ill-advised. The law, unfortunately, does not support his insistence on the argument that the resolution is not required. He could have applied to produce a valid resolution at any stage of the proceedings, given that the deponent's authority had been put in issue.

The effect of an invalid resolution, or of the absence of valid authority to depose to an affidavit on behalf of the legal entity when it is challenged, is that the proceedings would be unauthorised and, accordingly, lack legal existence. The opposition would be a legal nullity as an invalid resolution cannot produce a valid notice of opposition and opposing affidavit. A nullity begets nothing valid.

In these circumstances, the purported opposition from the first respondent being invalid must be struck out. I accordingly expunge the first respondent's purported notice of opposition and opposing affidavit. I shall treat the application as unopposed.

THE VALIDITY OF THE NOTICE OF FILING

Ms *Mahere* had argued that the notice of filing at p 162 of the record was incompetent and must be struck out. The basis of her argument was that it was filed without the leave of the court, and in any case, it purported to file evidential documents without an accompanying affidavit. That, in motion proceedings, evidence is placed before the court through an affidavit. Mr *Mugabe* had defended the notice of filing, arguing that there was no prejudice and, in any case, it was intended to produce the annexures omitted from the notice of opposition. Although submitted late, he said there was nothing irregular. My finding above would equally resolve this point *in limine*. Once the opposing papers purportedly for the first respondent were not authorised and were a nullity, it follows that the notice of filing thereof cannot stand. It would collapse as nothing can arise from a nullity. The position is long settled in *MacFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 (PC), where LORD DENNING famously said:

> "If an act is void, then it is in law a nullity. It is not only bad, but incurably bad. There is no need for the court to set it aside. It is automatically null and void without more ado... And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on it and expect it to stay there. It will collapse."

There is nothing upon which the purported notice can stand. In any case, it is trite that in motion proceedings, evidence, including documents to establish a party's announced or purported position, can only be properly adduced through an affidavit, save for exceptional circumstances where the court, at a hearing of an application, can allow *viva voce* evidence. The documents were simply smuggled into the record through the purported notice of filing. That procedure is completely alien to our law as set out in the rules. Should it become necessary for a party to file any further affidavit, rule 59(12) of the court rules also requires the leave of the court before such can be filed. In this case, besides the fact that the purported notice was similarly affected by the invalidity of the first respondent's papers, the notice would also have been irregular as it was not filed in accordance with the provisions of the rules of court or with the leave of the court.

THE VALIDITY OF THE COUNTER-APPLICATION

The other preliminary point raised was that there was no valid counter-application, as there was non-compliance with the case management order of 21 May 2026, and no condonation was sought and granted. Mr *Mugabe* admitted that the purported counter-application was filed out of time. He had argued that it was unopposed and that there was no prejudice, and the matter must proceed on the merits for finality. I must state that my finding above that the first respondent was not properly before me due to the lack of authority of the deponent to act on behalf of the entity would equally dispose of the purported counter-application. It cannot stand on a nullity or where the first respondent is non-suited. No valid application can flow from a nullity. It is trite that all proceedings arising from a nullity are incurably bad and void *ab initio*. They cannot validly exist. See *Aponte* v *Luigi & C. S. P. A. & Ors* SC 89/25 at p 12-13.

In any case, the purported counter-application was also fatally defective as it was filed out of time. The case management order by consent, in particular para (1), made it clear that the first respondent was required to file the counter-application together with the notice of opposition before close of business on 22 May 2026. There is no dispute that the purported counter-application was not filed with the notice of opposition on 22 May 2026. It was filed separately on 26 May 2026. The first respondent clearly failed to comply with the court order. It is trite that once a litigant fails to comply with a court order, he or she is automatically barred and cannot validly file any pleadings or be heard unless upon a successful application for condonation and extension of time within which to comply. The first respondent was, therefore, barred by operation of law. This rendered not only their purported counter-application, but also their opposition, not properly before the court. This position was affirmed in *Mauritius & Anor* v *Versapak Holdings (Pvt) Ltd & Anor* SC 02/22, where BHUNU JA had this to say:

> "[22] **The appellants' disregard of the time lines set out by the court a quo triggered an automatic bar shutting them out from being heard by operation of law**. Consequently, the appellants were effectively divested of their *locus standi* before the court upon default. That being the case, the court *a quo*'s finding that the appellants had no *locus standi* is beyond reproach. **That finding of fact effectively put the appellants out of court rendering it unnecessary to consider any submissions they would have made**. **This is for the simple but good reason that they were not entitled to be heard by the court *a quo* on any issue pertaining to the case**.
>
> [23] **The appellants' disdain of the time lines laid down by a court of law could only be purged by that court on the merits in a proper application for condonation and extension of**

> **time within which to comply with the terms set out in the provisional order**. The appellant's withdrawal of that application sounded the death knell for any lawful reprieve for the appellants considering that the court *a quo* had already issued a substantive order confirming the provisional order." (*my emphasis*)

The above legal position would affect the first respondent, even if it were to be taken that the resolution was valid. The issue is not about prejudice but about the court's obligation to consider only valid pleadings for any proper exercise of its jurisdiction. Invalid pleadings ought to be struck out. They do not legally exist. This is why a legal nullity is incapable of being amended or condoned. That the alleged counter-application was unopposed is neither here nor there. It is simply nothing for the court to consider. There is no valid counter-application before the court. The purported counter-application must equally be struck out. It is so struck out.

THE UNOPPOSED APPLICATION

Given my decision to strike out the purported first respondent's opposition, this application is now unopposed. At the hearing, Ms *Mahere* moved the court to grant the application once I uphold the points *in limine*. She argued that, the matter being urgent, there is no reason to even refer it to the unopposed roll. I have duly considered the relief sought by the applicant, and, as the case is uncontested, I see no reason why the order sought cannot be granted, save for the amendment of the paragraph relating to the costs of suit. The applicant seeks costs on a legal practitioner and client scale. These must be justified. They are not merely granted because a party has requested them. It is trite that costs on a legal practitioner and client scale are granted in exceptional circumstances. There must be evidence of abuse of court process or other conduct that would warrant the court expressing its displeasure by an award of punitive costs. I did not find any justification for the punitive costs prayed for by the applicant. There is no reason for me to depart from the general rule that costs should follow the cause.

In the result, the following order is issued:

"1. It is hereby declared that the court order granted in HCH 1272/26 on 6 May 2026 does not affect the applicant's mining rights in terms of Mining Lease Title Registered Number 33 issued on 13 August 2015 and published under General Notice 473 of 2014.

2. It is hereby ordered and declared that the applicant has a right to conduct all mining activities deriving from Mining Lease Title Registered Number 33 issued on 13 August 2015 and published under General Notice 473 of 2014.

3. It is hereby ordered and declared that the applicant has a right to create a buffer zone measuring a radius of 450 metres from Lots 61, 62, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 78 and 70 and conduct its mining activities outside the buffer zone created and within the parameters of Mining Lease Title Registered Number 33 issued on 13 August 2015 and published under General Notice 473 of 2014.

4. The first respondent shall bear the costs of suit.

DEMBURE J: ……

Mtetwa & Nyambirai, applicant's legal practitioners
Tafadzwa Ralph Mugabe | Legal Counsel, first respondent's legal practitioners
Civil Division of the Attorney-General's Office, second respondent's legal practitioners